

STATE OF NEW YORK

5929--A

2025-2026 Regular Sessions

IN SENATE

March 4, 2025

Introduced by Sen. MARTINS -- read twice and ordered printed, and when printed to be committed to the Committee on Investigations and Government Operations -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT authorizing the commissioner of general services to transfer and convey certain state land to the Syosset central school district; and providing for the repeal of such provisions upon expiration thereof

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subject to the provisions of this act but notwithstanding
2 any other provision of law to the contrary, the commissioner of general
3 services is hereby authorized to transfer and convey to the Syosset
4 Central School District, located in the hamlet of Syosset, town of
5 Oyster Bay, county of Nassau, the state land described in section two of
6 this act, owned by the state of New York and being in the hamlet of
7 Syosset, town of Oyster Bay, county of Nassau for the purpose of build-
8 ing new and expanding current facilities at Berry Hill Elementary
9 School. The transfer and conveyance of the land described in section two
10 of this act shall be made in consideration of the sum of one dollar and
11 upon such conditions as the commissioner of general services may deem
12 proper.

13 § 2. The land authorized by section one of this act to be transferred
14 and conveyed shall be the parcel as follows:

15 ALL that certain plot, piece or parcel of land, situate, lying and
16 being in Syosset, Town of Oyster Bay, County of Nassau and State of New
17 York, as shown on a map prepared by H2M architects + engineers, as
18 project number SYSD-2501, last revised January 15, 2025, bounded and
19 described as follows:

20 Beginning at a point on the northwesterly side of Syosset-Cold Spring
21 Road the following two courses and distances along the northwesterly
22 side of Syosset-Cold Spring Road from the northeasterly most end of an
23 arc connecting the northwesterly side of Syosset-Cold Spring Road with
24 the northeasterly side of Renee Road:

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 1. Along an arc of a curve bearing to the right having a radius of
2 767.765 feet with an arc length of 280.26 feet, with a chord bearing
3 North 40 degrees 50 minutes 55 seconds East and chord distance of 278.70
4 feet.

5 2. North 50 degrees 50 minutes 33 seconds East, 162.22 feet to the
6 point or place of beginning.

7 Thence northwesterly along the northeasterly side of land now or
8 formerly of Central School District 2 and lands now or formerly of 205
9 Melville LLC, the following two courses and distances;

10 1. North 33 degrees 46 minutes 42 seconds West, 498.05 feet.

11 2. North 37 degrees 30 minutes 38 seconds West, 537.91 feet.

12 Thence northeasterly along the southeasterly side of land now or
13 former of 205 Melville, LLC North 44 degrees 06 minutes 55 seconds East,
14 170.00 feet to the southwesterly side of land now or formerly of Singh
15 Trust.

16 Thence southeasterly along the southwesterly side of land now or
17 formerly of Singh Trust South 45 degrees 53 minutes 05 seconds East,
18 174.59 feet to the northwesterly most corner of land now or formerly of
19 Central School District 2.

20 Thence southeasterly along the southwesterly side of land now or
21 formerly of Central School District 2 South 34 degrees 51 minutes 07
22 seconds East, 604.18 feet to the northwesterly side of land now or
23 formerly of Zukov.

24 Thence southwesterly along the northwesterly side of land now or
25 formerly of Zukov South 47 degrees 21 minutes 13 seconds West, 145.98
26 feet.

27 Thence southeasterly along the southwesterly side of lands now or
28 former of Zukov South 33 degrees 46 minutes 42 seconds East, 270.00 feet
29 to the northwesterly side of Syosset-Cold Spring Road.

30 Thence southwesterly along the northwesterly side of Syosset-Cold
31 Spring Road South 50 degrees 50 minutes 33 seconds West, 35.05 feet to
32 the point or place of beginning.

33 Containing within said bounds 149,892.19 S.F. or 3.44 acres.

34 § 3. As a condition of the transfer, the Syosset Central School
35 District may submit to the commissioner of general services, for such
36 commissioner's approval, an accurate survey of the lands to be conveyed,
37 which may be used in the conveyance thereof.

38 § 4. The office of general services shall not transfer or convey the
39 aforesaid land unless the application is made to the office of general
40 services by the Syosset Central School District within one year after
41 the effective date of this act. Said application shall be in the form of
42 a resolution setting forth a comprehensive statement approved by the
43 Syosset Central School District board of education acknowledging and
44 accepting the use restrictions set forth in section five of this act.

45 § 5. The transfer and conveyance made pursuant to this act shall be
46 subject to the following use restrictions and reverter:

47 (a) The land described in this act shall be used exclusively for the
48 purposes of building new and expanding current facilities at Berry Hill
49 Elementary School.

50 (b) The conveyance of the land described in this act shall contain a
51 covenant and restriction requiring that the land be used for the
52 purposes set forth in subdivision (a) of this section. In the event the
53 premises are not accepted and/or used for such purposes, ownership of
54 the land shall revert to the state of New York.

55 § 6. This act shall take effect immediately and shall expire and be
56 deemed repealed two years after such date.